6.1 The applicant should evaluate the Other Method against the benchmark according to a protocol that is approved by an Administration.

6.2 The applicant should then prepare an application for the Other Method and submit it to the Member State concerned.
RESOLUTION MEPC.206(62)
Adopted on 15 July 2011
PROCEDURE FOR APPROVING OTHER METHODS OF BALLAST WATER MANAGEMENT IN ACCORDANCE WITH REGULATION B-3.7 OF THE BWM CONVENTIONMEPC 62/24/Add.1
Annex 25, page 6

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6.3 The Administration should review the application to ensure it is satisfactory (i.e. contains all of the information that is required and the information provided is of a sufficient standard to enable a decision to be made by the Committee). If the application is satisfactory,

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SOURCE: MEPC.206(62).pdf
(i.e. contains all of the information that is required and the information provided is of a sufficient standard to enable a decision to be made by the Committee). If the application is satisfactory, the Member State should submit a proposal for approval in principle to the Committee taking into account the deadlines prior to the MEPC at which approval in principle is to be sought.

6.4 When in session, the Committee should decide if the proposal is acceptable for consideration by the Committee and set the time frame for the evaluation of the proposal as follows:

.1 the Committee may commission an independent review of the risk assessment method, data and assumptions in order to ensure that a scientifically rigorous analysis has been conducted. The review should be undertaken by independent experts with ecological, aquatic biology, ship design and operation, and risk assessment expertise; and

.2 the reviewers' report should be in written form and circulated to the Parties, Members of the Organization, the United Nations and its Specialized Agencies, intergovernmental organi zations having agreements with the

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.2 the reviewers' report should be in written form and circulated to the Parties, Members of the Organization, the United Nations and its Specialized Agencies, intergovernmental organi zations having agreements with the Organization and non-governmental organizations in consultative status with the Organization, prior to its consideration by the Committee.

6.5 All proprietary data should be treated as confidential by the Committee, the competent authorities involved, and the independent reviewers, if any. However, all information related to safety and environmental protection, including physical/chemical properties and data on environmental fate and toxicity, should be treated as non-confidential.

6.6 The Committee should evaluate the application for approval in principle of an Other Method in accordance with this Procedure.

7 ASSESSMENT OF EQUIVALENCE

7.1 The Committee should review the benchmarks detailed in the application and, as appropriate, take them into account when assessing equivalence to the level of protection for the environment, human health, property or resources as provided for in regulations B-3.1 to B-3.5.

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as appropriate, take them into account when assessing equivalence to the level of protection for the environment, human health, property or resources as provided for in regulations B-3.1 to B-3.5.

7.2 Other Methods designed to provide at least an equivalent level of protection with respect to the prevention of the transfer of harmful aquatic organisms and pathogens via discharge of ballast water should demonstrate by risk assessment, independently validated physical and biological modelling, operational testing of this modelling and full-scale operational testing, where applicable, that the Other Method is capable of meeting a level of protection at all times that is, at least equivalent to, or better than, the applicable requirements contained in the BWM Convention.

7.3 Risk assessment is the logical process for assigning the likelihood and consequences of specific events, such as entry , establishment or spread of harmful aquatic organisms and pathogens in situations where a direct comparison of application benchmarks with the D-1 and D-2 standards is not possible.

7.4 In undertaking risk assessment to cons ider and evaluate the equivalence of an

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organisms and pathogens in situations where a direct comparison of application benchmarks with the D-1 and D-2 standards is not possible.

7.4 In undertaking risk assessment to cons ider and evaluate the equivalence of an Other Method with the existing standards, the risk assessment principles outlined in the Guidelines for risk assessment under regulation A-4 of the BWM Convention (G7) should be carefully applied. The lack of full scientific certainty should be carefully considered in the decision-making process.

7.5 Other Methods designed to provide equivalence to the D-1 standard can be used only until the ship type, under the BWM Convention, is required to comply with the D-2 standard (unless the system proves it can also provide equivalence to the D-2 standard):

.1 these methods should demonstrate through risk assessment,

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only until the ship type, under the BWM Convention, is required to comply with the D-2 standard (unless the system proves it can also provide equivalence to the D-2 standard):

.1 these methods should demonstrate through risk assessment, independently validated physical and biological modelling, operational testing of this modelling and full-scale operational testing of systems based on Other Methods, where applicable, that the Other Method is capable of meeting at all times a level of protection that is, at least equivalent to, or better than, regulation D-1 of the BWM Convention;

.2 if there is a question about the environmental impact of an Other Method during its development, such approval should be split in the same way as it is in Procedure (G9). That is, Other Methods should be approved by the Administration and Committee based on independently validated data prior to being tested at sea; and

.3 the relevant water quality parameters (e.g., suspended solids, salinity, oxygen concentration, particulate organic matter) should be reasonably the same in the incoming as well as in the outflowing water.

Equivalence with the D-2 standard

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.3 the relevant water quality parameters (e.g., suspended solids, salinity, oxygen concentration, particulate organic matter) should be reasonably the same in the incoming as well as in the outflowing water.

Equivalence with the D-2 standard

7.6 Other Methods designed to provide equivalence to the D-2 standard should demonstrate through risk assessment, independently validated physical and biological modelling, operational testing of this modelling and full-scale operational testing of systems based on Other Methods, where applicable, that the Other Method is capable of meeting at all times a level of protection that is at least equivalent to, or better than, regulation D-2 of the BWM Convention, as follows:

.1 where appropriate, benchmarks should be based on recognized international standards as long as they can be proven to provide an equivalent level of protection to the D-2 standard;

.2 the description of the main characteristics of the ballast water as well as the absence/presence of harmful aquatic organisms is to be supported by

independent verification; and

.3 onboard test results, equipment specification and quality assurance should

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absence/presence of harmful aquatic organisms is to be supported by independent verification; and

.3 onboard test results, equipment specification and quality assurance should be available.

8 APPROVAL

8.1 The approval takes place in two steps:

.1 an approval in principle of the Other Method following review and evaluation by the Committee (regulation B-3.7); and

.2 an approval of the Other Method in a manner analogous to Guidelines (G8) and (G10), by the Administration.